Media Law



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What is Defamation law?

Defamation law balances competing interests:

From one side, one shouldn't be able to ruin someone's life by telling lies about him or her; and from the other side, one should be able to speak freely without fear of litigation over every insult, disagreement, or mistake.



What is defamation?

American Dictionary defines it as:

“the action of damaging the good reputation of someone; slander or libel.”

What is the difference between Slander and Libel?

Slander

noun: the action of making a false **spoken statement** damaging to a person's reputation.

verb: make false and damaging statements about someone.

Libel

noun: a **published false statement** that is damaging to a person's reputation; a written defamation.

verb: defame someone by publishing a libel.

Defamation in Action

Defamation is not a crime in most states, but it is a "**tort**" (a civil wrong, rather than a criminal wrong). The person who has been defamed (the "**plaintiff**") can sue the person who did the defaming (the "**defendant**") for damages.

How Do You Prove Defamation?

A plaintiff suing for defamation typically must show:

The defendant **published** a statement about the plaintiff.

The statement was **false** (must be objectively false and saying one's opinion does not count)

The statement was **injurious (**for example, fired, losing customers, shunned by one's friends, or a cause of online harassment**)**

The statement was **unprivileged**.

LIBEL

- Traditionally, most of the laws limiting the absolute principle of freedom of the press have dealt with libel.
- These laws result from the desire of legislatures and courts to help individuals protect their reputations.

US courts use **four** categories to help jurors decide if someone's reputation has been damaged because he or she has been brought into hatred, contempt or ridicule:

1. Accusing someone of a crime.
2. Damaging a person in his or her public office, profession or occupation.
3. Accusing a person of serious immorality.
4. Accusing someone of having a loathsome (that is, contagious) disease.

How to Defend oneself from Libel Suit

There are three traditional defenses against libel:

- truth
- privilege
- fair comment and criticism.

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Privilege

- This defense applies when a reporter is covering any of the three branches of government.
- The courts allow legislators, judges and government executives the absolute privilege to say anything—true or false—when acting in their official capacities.
- The rationale is that the public interest is served when an official is allowed to speak freely and fearlessly about making laws, carrying them out or punishing those who do not obey them.
- Similarly, a participant in a judicial proceeding, such as an attorney, court clerk or judge, is absolutely privileged to make false and even defamatory statements about another person during that proceeding.

Privilege as a Reporter

- As a reporter, you have a qualified privilege, sometimes called neutral reporting or conditional privilege, at the federal level and in some states, to report what public officials say.
- Your privilege is conditioned on your report's providing full, fair and accurate coverage of the court session, the legislative session or the president's press conference, even if any one of the participants made defamatory statements.
- You can quote anything the president of the U.S. says without fear of losing a libel suit, even if the president is not acting in an official capacity. Reporters have a qualified privilege to report unofficial statements.

What is a fair comment?

- A fair comment is a privilege that allows the media to publish opinions about public officials and public figures without fear of a libel suit.
- It also allows the general public to share their opinions about these individuals.

Fair Comment and Criticism

- The courts have protected writers who comment on and criticize the public offerings of anyone in the public eye. Included in this category are actors and actresses, sports figures, public officials and other newsworthy people.
- You are protected as long as you do not misstate any of the facts on which you base your comments or criticisms and as long as you do not wrongly imply that you possess undisclosed, damaging information that forms the basis of your opinion.

How to Defend oneself from Libel Suit

Two other constitutional standards:

- the actual malice

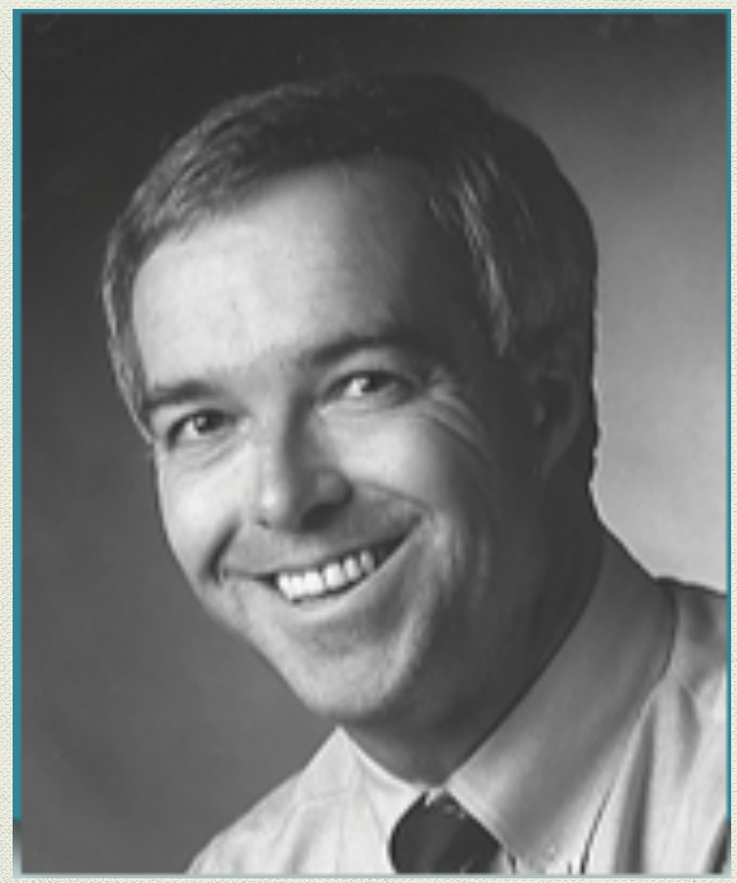
The Supreme Court has defined actual malice as actual knowledge that the statement is false or reckless disregard for the truth.

- negligence tests

The Keys to Avoiding Libel by Ken Paulson

Paulson suggests that journalists ask themselves these questions:

- Have I reported fully?
- Have I reported factually?
- Have I reported fairly?
- Have I reported in good faith?



What is Invasion of Privacy?

Invasion of privacy is a violation of a person's right to be left alone.

As a reporter, you may be risking an invasion of privacy suit under any of these circumstances:

- You physically intrude into a private area to get a story or picture—an act closely related to trespass.
- You publish a story or photograph about someone that is **misleading**, and thus you portray that person in **a "false light."**
- You disclose something about an individual's private affairs that is true but that is also **offensive** to a person of ordinary sensibilities.

What is Invasion of Privacy?

- Invasion of privacy may also be claimed if someone's name or picture is used in an advertisement or for similar purposes of trade.

What is a Defense in Invasion of Privacy Suit?

- Consent is a basic defense in invasion of privacy suits. Make sure, however, that your use of the material does not exceed the consent given.
- Another basic defense in an invasion of privacy suit is that you're a reporter covering a newsworthy situation.
- The courts usually protect members of the press against invasion of privacy suits when they are reporting matters of legitimate public interest.
- There are the three exceptions listed earlier, however: trespassing, portraying in a "false light," and causing unwanted publicity.

What is Trespassing?

- The first exception arises when you enter private property without permission to get a story. You cannot trespass on private property to get a story or to take a picture, even if it is newsworthy. The courts will not protect you when you are a trespasser.
- Two Life magazine staffers lost an invasion of privacy suit because, posing as patients, they went into a man's home to get a story about a faith healer. They lost the case even though they were working with the district attorney and the state board of health.
- You may enter private property only when you are invited by the owner or renter. And you should never use deception to gain entry to property you otherwise have no legal right of access to.

What is Portraying in a “False Light”

- The courts also will not protect you if you invade someone’s privacy by publishing misleading information about that person.
- For example, a legal problem arises if a photograph or information from a true story about a careful pedestrian struck by a careless driver is used again in connection with a story about, say, careless pedestrians. The pedestrian who was hit could file a lawsuit charging libel, “false light” invasion of privacy or even both in some states.

COPYRIGHT AND FAIR USE

- Copyrightable works are protected from the moment they are fixed in tangible form, whether published or unpublished.
- Copyright protection begins with a work's "creation and . . . endures for a term consisting of the life of the author and 70 years after the author's death."
- Works for hire and anonymous and pseudonymous works are protected for 95 years from publication or 100 years from creation, whichever is shorter.
- There is a "fair use" limitation on the exclusive rights of copyright owners. In other words, it may be permissible to quote small excerpts from a copyrighted work without permission.

political correctness

- The concept of political correctness is based on the belief that speech or behavior that is offensive to various groups' sensibilities should be eliminated, by means of regulations or penalties if necessary.

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